

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

-----X
MOUCTAR TOURE, BAKARY TURE, ABDUL
SANKARY, FODAY SANKARY, minor by F/N/G
MUSA SANKARY, AHMED HARUNA,

Plaintiffs,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
FEDERICO RIVERA bearing shield 00622 of
the 44th Police Precinct, SERGEANT MARIO
MORALES bearing shield 2392, and POLICE
OFFICERS "JOHN DOE 1-10", names unknown
but believed to be Police Officers
involved in the arrest and assault of
plaintiff,

Defendants.
-----X

SUMMONS

Plaintiff designates
Bronx as the place of
trial.

The basis of venue is:
COUNTY OF OCCURRENCE

Plaintiffs reside at
Mouctar Toure, 943
Sherman Avenue, Bronx,
NY 10456;
Bakary Ture, 1353
Sheridan Avenue, Bronx,
NY 10456;
Abdul Sankary, 1348
Webster Avenue, Bronx,
NY 10456;
Foday Sankary, 1348
Webster Avenue, Bronx,
NY 10456;
Ahmed Haruna, 1368
Webster Avenue, Bronx,
NY 10456

To the above named Defendants:

You are hereby summoned to answer the complaint in this
action, and to serve a copy of your answer, or, if the complaint
is not served with this summons, to serve a notice of appearance
on the Plaintiff's attorneys within twenty days after the service
of this summons, exclusive of the day of service, where service
is made by delivery upon you personally within the state, or,
within 30 days after completion of service where service is made
in any other manner. In case of your failure to appear or
answer, judgment will be taken against you by default for the
relief demanded in the complaint.

Dated: Mineola, New York
September 9, 2013


Steve Marchelos
MARCHELOS LAW P.C.
Co-Counsel for Plaintiffs
87 Mineola Boulevard
Mineola, New York 11501
(516) 248-0202

Co-Counsel with
Kravet, Hoefer & Maher, P.C.
Co-Counsel for Plaintiffs
1135A Morris Park Avenue, Suite 202
Bronx, NY 10461
(718) 931-3131

TO: THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

POLICE OFFICER FEDERICO RIVERA
Shield # 00622
44th Police Precinct
2 East 169th Street
Bronx, NY 10452

SERGEANT MARIO MORALES
Shield # 2392
c/o New York City Police Department
1 Police Plaza
New York, New York 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
MOUCTAR TOURE, BAKARY TURE, ABDUL SANKARY,
FODAY SANKARY, minor by F/N/G MUSA SANKARY,
AHMED HARUNA,

VERIFIED COMPLAINT

Plaintiffs,

Index No:

-against-

THE CITY OF NEW YORK, POLICE OFFICER
FEDERICO RIVERA bearing shield 00622 of the
44th Police Precinct, SERGEANT MARIO MORALES
bearing shield 2392, and POLICE OFFICERS
"JOHN DOE 1-10", names unknown but believed
to be Police Officers involved in the
arrest and assault of plaintiff,

Defendants.

-----X

MOUCTAR TOURE, BAKARY TURE, ABDUL SANKARY, FODAY SANKARY,
minor by F/N/G MUSA SANKARY, AHMED HARUNA, by their attorneys,
MARCHELOS LAW P.C., alleges the following, upon information and
belief, as their Complaint:

NATURE OF THE ACTION

1. This civil rights action arises from the defendants'
unlawful and improper arrest, imprisonment, assault, abuse,
discrimination and harassment of plaintiffs on September 10,
2010;

2. Plaintiffs seek declaratory relief pursuant to CPLR
§3001 and 28 U.S.C. §2201, compensatory and punitive damages for
violation of plaintiffs' civil rights pursuant to 42 U.S.C.
§§1981, 1983, 1985 and 1986 and an award of costs, disbursements
and attorneys fees under 42 U.S.C. §1988. Plaintiffs also seek

compensatory and punitive damages under State Law Tort claims;

JURISDICTION

3. This action is predicated upon violations of plaintiffs' Civil Rights protected under the United States Constitution inclusive of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution and actionable pursuant to 42 U.S.C. §§1981, 1983, 1985 and 1986;

VENUE

4. That Venue for this action is placed in the County of the Bronx because that is the county of occurrence of the acts alleged herein pursuant to CPLR 504(3)

NOTICE OF CLAIM

5. That on December 9, 2010, plaintiffs each caused a separate Notice of Claim to be served upon defendants, THE CITY OF NEW YORK;

6. These Notices of Claim were served upon the person designated by law as a person to whom such claims may be presented and served;

7. The Notice of Claim was in writing, sworn to by or on behalf of the plaintiffs and contained the name and post office address of the plaintiffs and plaintiffs' attorney, the nature of the claim, the time when the place where and the manner by which the claim arose, and the damage and injuries claimed to have been sustained;

8. That on May 25, 2011, plaintiff ABDUL SANKARY presented before the defendant, CITY OF NEW YORK, and gave testimony pursuant to General Municipal Law 50-h about the acts and occurrence which gave rise to this action;

9. That on May 25, 2011, plaintiff BAKARY TURE presented before the defendant, CITY OF NEW YORK, and gave testimony pursuant to General Municipal Law 50-h about the acts and occurrence which gave rise to this action;

10. That on May 25, 2011, plaintiff MOUCTAR TOURE presented before the defendant, CITY OF NEW YORK, and gave testimony pursuant to General Municipal Law 50-h about the acts and occurrence which gave rise to this action;

11. That on May 25, 2011, plaintiff FODAY SANKARY presented before the defendant, CITY OF NEW YORK, and gave testimony pursuant to General Municipal Law 50-h about the acts and occurrence which gave rise to this action;

12. That on August 5, 2011, plaintiff AHMED HARUNA presented before the defendant, CITY OF NEW YORK, and gave testimony pursuant to General Municipal Law 50-h about the acts and occurrence which gave rise to this action;

13. The defendant, CITY OF NEW YORK, never requested a physical exam;

14. That at last thirty days have elapsed since the service of the notice of claim and that Defendant, CITY OF NEW

YORK has either neglected, failed and/or refused to pay and/or adjust the claim within the statutory period of time;

15. This action has been started within one year and ninety days after the happening of the event upon which the claim is based;

PARTIES

16. Plaintiffs were and continue to be residents of the State of New York, County of Bronx;

17. Defendant, the CITY OF NEW YORK, (hereinafter "CITY") is a municipal corporation duly authorized and existing under and by virtue of the laws of the State of New York;

18. Defendant, CITY , has established and maintains a police department which is an agency of the defendant, CITY OF NEW YORK;

19. At all times relevant, defendant CITY employed the individual defendant, POLICE OFFICER FEDERICO RIVERA bearing shield 00622 of the 44th Police Precinct, (hereinafter referred to as "RIVERA");

20. At all times relevant, defendant CITY employed the individual defendant, SERGEANT MARIO MORALES bearing shield 2392, (hereinafter referred to as "MORALES");

21. At all times relevant, defendant CITY employed the individual defendants, POLICE OFFICERS "JOHN DOE 1-10," whose identities are currently unknown to the plaintiffs but within the

exclusive possession of the defendants;

22. At all times relevant, defendants, RIVERA, MORALES and the "JOHN DOE" officers were duly appointed and acting police officers of the CITY ;

23. At all times relevant, these individual defendants were acting under the color of State Law;

24. At all times relevant, these individual defendants were acting both in their individual capacities and their official capacity as employees of defendant the CITY ;

25. Notwithstanding the unconstitutional and unlawful conduct, the actions of these individual defendants were taken in the course of their duties and were incidental to their otherwise lawful functions as agents, servants and employees of the CITY ;

FACTS UNDERLYING PLAINTIFF'S CLAIMS FOR RELIEF

26. That on or about September 10, 2010 at approximately 10:00 p.m. of that day and continuing through their release on September 12, 2010 at approximately 5-6:00 p.m., plaintiffs, MOUCTAR TOURE, BAKARY TURE, ABDUL SANKARY, FODAY SANKARY, and AHMED HARUNA, were falsely and unlawfully arrested by defendants, CITY OF NEW YORK, by its agents, servants and/or employees, on the corner of Marcy Place and the Grand Concourse, between 169th and 170th Streets, Bronx, New York;

27. That plaintiffs were arrested while lawfully on the sidewalk;

28. That the plaintiffs were not doing anything unlawful prior to their arrest by defendants;

29. In fact, the plaintiffs were waiting to be picked up by a relative and driven to a traditional celebration to mark the end of Ramadan on September 10, 2010;

30. That when plaintiffs attempted to explain that they were waiting for their adult relative to pick them up and take them to a celebration marking the end of Ramadan, they defendants made derogatory remarks about Muslims and intimidating statements about September 11;

31. That the defendants, including RIVERA, MORALES and the "JOHN DOE" officers did not have probable or reasonable cause to believe that plaintiffs had committed any crime;

32. That the defendants, including RIVERA, MORALES and the "JOHN DOE" officers knew, from their customary and routine patrols of the neighborhood, as well as the plaintiffs' statements, that the plaintiffs were of the Muslim faith and were intending to celebrate the end of Ramadan on September 10, 2010 at approximately 10:00 p.m.;

33. That upon information and belief, this unlawful arrest was made to punish, harass and prevent the individual plaintiff's from celebrating Ramadan;

34. That upon information and belief, this unlawful arrest was made to punish and harass the Muslim plaintiffs by

forcing them to spend their holiday in jail during, and through, September 11, 2010, a day of national remembrance in the United and, in particular, New York City;

35. That upon information and belief, the unlawful arrests of plaintiffs were made in furtherance of, and as part of, the "stop and frisk" policies, customs, practices and procedures implemented and practiced by the defendant, City of New York, by and through its agency, the New York City Police Department, and the stop of the plaintiffs as well as the arrests were without probable cause, or even reasonable suspicion, to believe a crime was being committed or was about to be committed;

36. That the "stop and frisk" policy, custom, practice and procedure implemented and practiced by the defendant, City of New York, by and through its agency, the New York City Police Department, was unconstitutional;

37. That the "stop and frisk" policy, custom, practice and procedure implemented by the defendant, City of New York, by and through its agency, the New York City Police Department, was practiced by the City's police officers, including the individual defendants named herein, in an unconstitutional manner;

38. That the plaintiffs were unlawfully profiled;

39. That the City's police officers, including the individual defendants named herein, were improperly trained and supervised;

40. That the City's police officers, including the individual defendants named herein, were improperly trained and supervised to recognize and respect the constitutional boundaries of the City's "stop and frisk" policy, custom, practice and procedure;

41. That this lack of training and supervision has resulted in the establishment of a *de facto* practice and policy whereby individuals of color, who are lawfully traversing the public streets and sidewalks, are profiled, stopped, frisked and arrested;

42. That as a result of the actions by these individual defendants, as well as the aforementioned "stop and frisk" policy, practice, custom and policy, the plaintiffs civil rights were violated;

43. That as a result of the foregoing, plaintiffs were placed in handcuffs by the defendants, including the individual defendants named herein;

44. That as a result of the foregoing, the arrest was initiated and continued without probable cause to believe any crime had been committed by the plaintiffs;

45. That as a result of the foregoing, plaintiffs were subjected to various searches of their person by the defendant police officers;

46. That plaintiffs were transported to the 44th Police

Precinct while in handcuffs;

47. That plaintiffs were confined to a cell in the 44th Police Precinct and Bronx Central Booking for a period of 43 hours;

48. That plaintiffs had knowledge of their confinement;

49. That plaintiffs did not consent to their confinement;

50. That plaintiffs were prevented from leaving their confinement;

51. That during their confinement, plaintiffs were fingerprinted and photographed by, and at the direction of, the defendants;

52. That during their confinement, plaintiffs were intimidated, threatened and disrespected by the defendants;

53. That on September 12, 2010 at approximately 5-6:00 p.m. of that day, plaintiffs were presented before a Judge in the Criminal Court;

54. That on September 10, 2010, the charges that were levied by defendants against the plaintiffs were dismissed without condition;

55. That Plaintiffs sustained great fear, emotional harm, disgrace, embarrassment, and loss of self esteem as a result of the aforesaid arrest, imprisonment, assault, battery, intimidation and abusive behavior perpetrated upon them by defendants as a result of the afore-referenced events including

anxiety and stress;

56. That plaintiffs suffered from, and were deprived of their right to celebrate their religious holiday because of the unconstitutional acts perpetrated upon them by defendants;

57. That Plaintiffs suffered from a loss of liberty and deprivation of civil rights protected by the United States and New York State Constitution as a result of the afore-referenced events;

**FIRST CAUSE OF ACTION FOR VIOLATION OF
PLAINTIFFS' SUBSTANTIVE AND PROCEDURAL DUE
PROCESS RIGHTS TO BE FREE FROM UNREASONABLE
SEARCHES AND SEIZURES UNDER THE FOURTH, FIFTH
AND FOURTEENTH AMENDMENTS TO THE UNITED
STATES CONSTITUTION PREDICATED UPON FALSE
ARREST AND IMPRISONMENT**

58. Plaintiffs repeat, reiterate and reallege each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

59. As a result of the aforescribed actions, including the arrest and imprisonment of plaintiffs without probable cause, the individual defendants, RIVERA, MORALES and the "JOHN DOE" officers, deprived plaintiffs of their ***rights, privileges and immunities*** secured by the Constitution and laws of the United States and the Fourteenth Amendment;

60. As a result of the aforescribed actions, these defendants individually deprived plaintiffs of their substantive and procedural due process ***rights to be free from unreasonable***

search and seizures secured by the Constitution and laws of the United States and the Fourth and Fourteenth Amendments;

61. As a result of the aforescribed actions, these defendants individually deprived plaintiffs of their substantive and procedural **right to liberty** without due process of law secured by the Constitution and laws of the United States and the Fifth and Fourteenth Amendments;

62. As a result of the aforescribed actions, including the patently offensive and threatening remarks made by defendants during the aforementioned seizure, arrest, incarceration and assault of plaintiffs, these defendants individually deprived plaintiffs of **Equal Protection under the Law** secured by the Constitution and laws of the United States and the Fourteenth Amendment;

63. The aforescribed conduct by these defendants were racially motivated and instigated by defendants for other than lawful reasons and without probable cause;

64. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. §§1981, 1983, 1985 and 1986;

65. The aforescribed acts of these defendants were intentional, willful, malicious and performed with reckless disregard for and deliberate indifference to plaintiffs' rights;

66. As a result of the foregoing, plaintiffs have

suffered damages;

SECOND CAUSE OF ACTION FOR VIOLATION OF
PLAINTIFFS' SUBSTANTIVE AND PROCEDURAL DUE
PROCESS RIGHTS TO BE FREE FROM UNREASONABLE
SEARCHES AND SEIZURES, AS PROTECTED BY
ARTICLE 1 OF THE NEW YORK STATE CONSTITUTION
PREDICATED UPON THE ARREST AND IMPRISONMENT
OF PLAINTIFFS WITHOUT PROBABLE CAUSE

67. Plaintiffs repeat, reiterate and reallege each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

68. As a result of the aforescribed actions, including the arrest and imprisonment of plaintiffs without probable cause, the individual defendants, RIVERA, MORALES and the "JOHN DOE" officers, deprived plaintiffs of the *rights, privileges and immunities* secured by Article I, Sections 1, 5, 8, 11 and 12 the New York State Constitution;

69. As a result of the aforescribed actions, these defendants individually deprived plaintiffs of the substantive and procedural due process *right to be free from unreasonable search and seizures* secured by Article I, Sections 1, 5, 8, 11 and 12 of the New York State Constitution;

70. As a result of the aforescribed actions, these defendants individually deprived plaintiffs of their substantive and procedural *right to liberty* without due process of law secured by Article I Sections 1, 8, 11 and 12 of the New York State Constitution;

71. As a result of the aforescribed actions, these defendants individually deprived plaintiffs of ***Equal Protection under the Law*** secured by Article 1 Sections 1, 8, 11 and 12 of the New York State Constitution;

72. The aforescribed conduct by these defendants were instigated by the defendants for other than lawful reasons and without probable cause;

73. The aforescribed acts of these individual defendants was intentional, willful, malicious and performed with reckless disregard for and deliberate indifference to plaintiffs' rights;

74. The afore-described acts of defendants were performed under color of state law;

75. The aforementioned use of force and infliction of physical and emotional harm caused immediate injury in the form of physical and emotional pain, suffering, shock, fright, humiliation, embarrassment, disgrace and deprivation of plaintiffs' constitutional rights;

76. As a result of the foregoing, plaintiffs have suffered damages;

**THIRD CAUSE OF ACTION FOR VIOLATION OF
PLAINTIFFS' SUBSTANTIVE AND PROCEDURAL DUE
PROCESS RIGHTS UNDER THE FOURTH, FIFTH AND
FOURTEENTH AMENDMENTS TO THE UNITED STATES
CONSTITUTION PREDICATED UPON DEFENDANT'S
ADOPTION, IMPLEMENTATION, CREATION,
MAINTENANCE, TRAINING AND SUPERVISION OF THE**

**UNCONSTITUTIONAL CUSTOM, POLICY AND PRACTICE
KNOWN AS "STOP AND FRISK" (MONELL)**

77. Plaintiffs repeat, reiterate and reallege each and every allegation contained in the paragraphs set forth above, with the same force and effect as if more fully set forth herein.

78. That the afore-described actions, including the manner in which defendant, The CITY , created, adopted, implemented and maintained its "stop and frisk" policies, customs, practices and procedures, violated the plaintiffs' civil rights;

79. That the afore-described actions, including the failure of defendant, The CITY , to properly train and supervise its employees to recognize and respect the constitutional boundaries of its "stop and frisk" policy, custom and practice, demonstrates a reckless disregard for the civil rights of lawful citizens, including the plaintiffs herein;

80. That the creation and/or existence of this policy, practice, custom and/or course of conduct has been known to the supervisory policy making employees of defendant, The CITY , for a substantial period of time;

81. That the reckless disregard for the deficient manner in which this custom, practice and policy has been implemented has also been known to the supervisory policy making employees of defendant, The CITY , for a substantial period of time;

82. That the reckless disregard for the deficient and

improper manner in which its officers have been trained to implement this custom, practice and policy has also been known to the supervisory policy making employees of defendant, The CITY , for a substantial period of time;

83. That the reckless disregard for the deficient manner in which its officers have been supervised in implementing this custom, practice and policy has also been known to the supervisory policy making employees of defendant, The CITY, for a substantial period of time;

84. That despite its knowledge of these policies, customs and practices the supervisory and policy making employees of defendant, The CITY, have not taken steps to terminate said practices, have not disciplined or otherwise properly supervised or retrained the officers who engaged in said practices, have not condemned or otherwise discouraged said practices, have not effectively trained or retrained employees with regard to proper investigatory practices, including how to recognize probable cause that a crime has been committed or reasonable suspicion to believe a crime will be committed, and have instead sanctioned the policy and practices described previously through their deliberate indifference to the effect of such policy and practices on the constitutional rights of the general public, including residents and visitors of the CITY and the plaintiffs herein;

85. That defendant, The CITY, by and through its policy making agents, servants and/or employees, having sanctioned this "stop and frisk" policy, custom and practice, have caused a violation of the civil rights of plaintiffs and are vicariously liable to the plaintiffs for injuries resulting from violations of the Fourth, Fifth and Fourteenth Amendments of the United States Constitution actionable under and pursuant to 42 U.S.C. Sections 1981, 1983, 1985, 1986, 1988;

86. As a result of the acts stated above, plaintiffs have suffered a deprivation of liberty without probable cause, denial of due process, invasion of privacy, damage to character and reputation, mental stress and anxiety, and plaintiffs will continue to suffer same in the future;

87. As a result of the acts stated above, plaintiffs were compelled to and did incur expenses as a result, and were caused great social embarrassment in their community;

88. As a result of the foregoing, plaintiffs have suffered damages;

FOURTH CAUSE OF ACTION FOR PUNITIVE DAMAGES

89. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

90. That the aforesaid occurrence and resulting injuries to plaintiffs were due to the willful, wanton, reckless and/or

malicious conduct of the individual defendants, RIVERA, MORALES and the "JOHN DOE" OFFICERS ;

91. That the aforesaid occurrence and resulting injuries to plaintiffs were due to the conduct of these defendants which reflects an utter indifference to the safety and well being of others and specifically the safety and well being of plaintiffs;

92. That the conduct of these individual defendants exhibited a reckless disregard for human life and the safety and well being of others and more particularly, for the life, safety and well being of plaintiffs;

93. As a result of the foregoing, plaintiffs have suffered damages;

94. As a result of the foregoing, defendants, RIVERA, MORALES and the "JOHN DOE" defendants should be made to pay punitive damages to punish them for their wanton, reckless and malicious acts and thereby discourage these defendants and others from acting in a similar way in the future;

REQUEST FOR RELIEF

WHEREFORE, Plaintiffs respectfully request that judgment be entered as follows:

(A) Declaratory relief as follows:

1. As to the first cause of action, a declaration that plaintiffs' substantive and procedural due process rights to be free from unreasonable searches and seizures under the fourth, fifth and fourteenth amendments to the United States Constitution was violated predicated upon the

unlawful arrest and imprisonment of plaintiffs;

2. As to the second cause of action, a declaration that plaintiffs' substantive and procedural due process rights to be free from unreasonable searches and seizures, as protected by Article 1 of the New York State Constitution was violated predicated upon the arrest and imprisonment of plaintiffs without probable cause;
3. As to the third cause of action, a declaration that plaintiffs' substantive and procedural due process rights under the Fourth, Fifth and Fourteenth amendments to the United States Constitution predicated upon defendant's adoption, implementation, creation, maintenance, training and supervision of the unconstitutional custom, policy and practice known as "stop and frisk," was violated (Monell claim);

(B) As to the first through third causes of action, compensatory damages in an amount that exceeds the jurisdictional limits of all lower Courts that would otherwise have jurisdiction;

(C) As to the first through fourth causes of action, punitive damages in an amount that exceeds the jurisdictional limits of all lower Courts that would otherwise have jurisdiction, by reason of the wanton, willful and malicious character of the conduct complained of herein;

(D) As to the first through fourth causes of action, an award to plaintiffs of the costs and disbursements herein;

(E) As to the first through third causes of action, an award of attorney's fees as provided under 42 U.S.C. §1988;

and

(F) Such other and further relief as this Court may deem
just, proper and equitable

Dated: September 9, 2013
Mineola, New York



Steve Marchelos
MARCHELOS LAW P.C.
Co-Counsel for Plaintiffs
87 Mineola Boulevard
Mineola, New York 11501
(516) 248-0202

Co-Counsel with
Kravet, Hoefer & Maher, P.C.
Co-Counsel for Plaintiffs
1135A Morris Park Avenue, Suite 202
Bronx, NY 10461
(718) 931-3131

ATTORNEY VERIFICATION

Steve J Marchelos, an attorney duly admitted to practice law in the Courts of the State of New York affirms the following to be true under the penalties of perjury pursuant to CPLR 2106.

That affirmant is the attorney for the plaintiffs in the action within; that affirmant has read the foregoing **COMPLAINT** and knows the contents thereof; that the contents are true to affirmant's own knowledge except as to the matters therein stated to be alleged upon information and belief, and as to those matters affirmant believes them to be true; that the reason this verification is not made by plaintiffs and is made by affirmant is that plaintiffs are not presently in the county where the attorneys for the plaintiffs have their office.

Affirmant further says that the source of deponent's information and the grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are from conversations with said plaintiffs and investigations made by affirmant's office on behalf of said plaintiffs.

Dated: Mineola, New York
 September 9, 2013



Steve J Marchelos

Index No.
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF COUNTY OF BRONX

MOUCTAR TOURE, BAKARY TURE, ABDUL SANKARY, FODAY SANKARY, minor
by F/N/G MUSA SANKARY, AHMED HARUNA,
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-against-

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Officers involved in the arrest and assault of plaintiff,

Defendants.

SUMMONS and VERIFIED COMPLAINT

MARCHELOS LAW P.C.

ATTORNEYS FOR PLAINTIFF(S)

87 MINEOLA BLVD.

MINEOLA, NEW YORK 11501

(516) 248-0202

Service of a copy of the within is hereby admitted.

Dated:

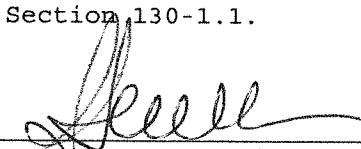
.....
Attorney(s) for

Attorney Certification Pursuant to 22 NYCRR Section 130-1.1.A

The undersigned, an attorney duly admitted to practice law in the Courts
of the State of New York, respectfully affirms the truth of the following
statement under the penalty of perjury pursuant to CPLR §2106

The undersigned attorney hereby certifies that to the best of his/her
knowledge, information and belief, formed after an inquiry reasonable under
the circumstances, the presentation of the paper(s) or the contents herein are
not frivolous as defined in Subsection C of Section 130-1.1.

Dated: 9/10, 2013


Steve Marchelos